

PROPOSED
SENATE AMENDMENTS TO S.B. 1443
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-240, Arizona Revised Statutes, is amended to
3 read:

4 9-240. General powers of common council

5 A. The common council shall have control of the finances and
6 property of the corporation.

7 B. The common council shall also have power within the limits of
8 the town:

9 1. To erect, purchase or lease necessary buildings for the purposes
10 of the corporation.

11 2. To appropriate money and provide for the payment of its debts
12 and expenses.

13 3. TO DO ALL OF THE FOLLOWING:

14 (a) ~~To~~ Exercise exclusive control over the streets, alleys, avenues
15 and sidewalks of the town and to give and change the names thereof.

16 (b) ~~To~~ Prevent and punish for the encumbering thereof, and to abate
17 and remove all encumbrances and obstructions thereon.

18 (c) ~~To~~ Widen, extend, straighten, regulate, grade, clean or
19 otherwise improve the same.

20 (d) ~~To~~ Open, lay out and improve new streets, avenues and alleys.

21 (e) ~~To~~ Vacate or abandon any street, avenue, alley, park, public
22 place or sidewalk in such town or to abolish them, provided that
23 rights-of-way or easements of existing sewer, gas, water or similar
24 pipelines and appurtenances and for canals, laterals or ditches and
25 appurtenances, and for electric, telephone, and similar lines and
26 appurtenances shall continue as they existed prior to the vacating,
27 abandonment, or abolishment thereof.

28 (f) ~~To~~ Protect the same from encroachment and injury.

1 4. To erect and maintain bridges, culverts, sidewalks and
2 crossways, and prevent and punish for injuries thereto or obstructions
3 thereon.

4 5. TO DO ALL OF THE FOLLOWING:

5 (a) ~~To~~ Construct and maintain sewers and drains, and prevent and
6 punish for any obstruction thereof, or thereto.

7 (b) ~~To~~ Change the channels of natural watercourses, to wall the
8 same and cover them over, and regulate the same as sewers.

9 (c) ~~To~~ Prevent and punish for the filling up, altering or changing
10 of natural watercourses by private persons.

11 (d) ~~To~~ Regulate the bridging of all millraces, irrigating and other
12 ditches at the crossings of public highways, by the owners of such
13 millraces and ditches, and after such bridge or ford is built according to
14 the street commissioner's instructions, the crossing shall thereafter be a
15 public charge.

16 6. To provide the town with water, to construct public wells,
17 cisterns and reservoirs in the streets and other public and private places
18 within the town, or beyond the limits thereof, and to supply the same with
19 pumps and conducting pipes or ditches.

20 7. TO DO ALL OF THE FOLLOWING:

21 (a) ~~To~~ Provide regulations for the prevention and extinguishment of
22 fires.

23 (b) ~~To~~ Prevent the erection of wooden buildings within prescribed
24 limits.

25 (c) ~~To~~ Regulate the construction of chimneys, furnaces and
26 fireplaces.

27 (d) ~~To~~ Regulate the storage of explosives, tar, pitch, resin and
28 other combustible or inflammable materials, and to prescribe the places
29 and manner of storing the same.

30 8. To provide for lighting the streets and other public places of
31 the town, and to exclusively regulate and control the laying and repairing
32 of gas pipes and other appurtenances therein.

33 9. To provide for enclosing, improving and protecting the public
34 grounds and cemeteries of the town, and to direct and regulate the
35 planting of ornamental and shade trees therein and in the streets of the
36 town.

37 10. To establish markets and marketplaces for the town and to
38 regulate the same.

39 11. TO DO ALL OF THE FOLLOWING:

40 (a) ~~To~~ Establish and maintain necessary cemeteries and burial
41 places for the town beyond the limits thereof.

42 (b) ~~To~~ Regulate the burial of the dead.

43 (c) ~~To~~ Require a registration of the deaths and births, and to
44 impose penalties [ଅମରା] [ଠନ] physicians and surgeons for any default in
45 the premises.

46 12. To establish and regulate the police of the town, to appoint
47 watchmen and policemen, and to remove them, and to prescribe their powers
48 and duties.

1 13. To prevent, suppress and punish any riot, rout, affray,
2 disorderly noise or disturbance in any public or private place within the
3 town.

4 14. To prevent, suppress and punish racing or immoderate riding or
5 driving through the streets.

6 15. **TO DO BOTH OF THE FOLLOWING:**

7 (a) ~~To~~ Prohibit and punish any amusements or practice tending to
8 annoy or obstruct persons passing ~~upon~~ **[ON]** the streets or sidewalks, or
9 frighten horses or other animals being ridden or driven thereon.

10 (b) ~~To~~ Restrain and punish the ringing of bells, blowing of horns,
11 crying of goods, **SOUND CREATED BY ~~[A]~~ **[AN EXTERNAL]** SPEAKER OR **[EXTERNAL]****
12 **AMPLIFYING EQUIPMENT** or other noises, performances and practices tending
13 to cause the collection of persons ~~upon~~ **[ON]** the streets or sidewalks
14 and the obstruction thereof.

15 16. **TO DO ALL OF THE FOLLOWING:**

16 (a) ~~To~~ Prohibit the roaming at large of animals within the town.

17 (b) ~~To~~ Authorize the impounding and summary sale thereof when found
18 roaming at large contrary to ordinance.

19 (c) ~~To~~ Impose penalties ~~upon~~ **[ON]** the owners thereof for a
20 violation of any ordinance in relation thereto.

21 (d) ~~To~~ Regulate, restrain and prohibit the running at large of dogs
22 and to authorize their destruction when at large contrary to any ordinance
23 of the town, and to impose penalties ~~upon~~ **[ON]** the owners thereof.

24 17. **TO DO ALL OF THE FOLLOWING:**

25 (a) ~~To~~ Suppress and prohibit prostitution and unlawful sexual
26 intercourse and to punish persons guilty thereof.

27 (b) ~~To~~ Suppress and prohibit the operation of disorderly houses and
28 to punish the owners, managers, lessees, agents, keepers and inmates
29 thereof.

30 (c) ~~To~~ Suppress and prohibit gambling and the operating of gambling
31 houses and to punish the owners, managers and employees thereof and
32 players at such games.

33 18. To fix the amount of license taxes to be paid by any person,
34 firm, corporation or association for carrying on any business, game or
35 amusement, calling, profession or occupation, and prescribe the method of
36 collection or payment of the same, for a stated period in advance, and fix
37 penalties for failure to comply by fine or imprisonment, or both. Nothing
38 in this article shall be construed as authorizing any town or city to levy
39 an occupational license or fee on any activity when the general law of the
40 state precludes levying such a license or fee.

41 19. To authorize the clerk to issue licenses, to direct the manner
42 of issuing and registering the same, and the fees of the clerk
43 therefor. No license shall be granted for more than one year, and not
44 less than ~~ten dollars~~ **\$10** nor more than ~~five thousand dollars~~ **\$5,000** shall
45 be charged for any license so issued.

46 20. **TO DO BOTH OF THE FOLLOWING:**

47 (a) ~~To~~ Provide regulations to prevent the introduction or spread of
48 contagious, loathsome or infectious diseases within the town.

1 (b) ~~To~~ Make quarantine laws and enforce them within the town and
2 within two miles thereof, and to provide pest houses and hospitals
3 necessary therefor.

4 21. TO DO ALL OF THE FOLLOWING:

5 (a) ~~To~~ Define, abate and remove nuisances, and punish persons
6 committing nuisances.

7 (b) ~~To~~ Compel the owner or any occupant of any house or premises to
8 clean the grounds, stables, alleys, streets and walks appurtenant and
9 adjacent thereto.

10 (c) ~~To~~ Prohibit within the town and within two miles beyond the
11 limits thereof slaughterhouses, tanneries, soap factories, establishments
12 for the steaming or rendering of tallow, lard or offal, and all other
13 establishments and places where any nauseous, offensive or unwholesome
14 business may be carried on.

15 22. To perform other acts, and prescribe other regulations, which
16 may be necessary or expedient for the prevention or suppression of
17 disease.

18 23. To establish and maintain a workhouse or houses of correction,
19 to make regulations for the government thereof and to appoint the officers
20 and keepers thereof.

21 24. To authorize the arrest and punishment of vagrants, stragglers
22 and idle and disorderly persons found loitering or strolling about in
23 public places, leading an immoral or profligate life, and to authorize the
24 confinement of any such person, and persons who fail to pay any fine, in
25 the workhouse or house of correction for a period not exceeding three
26 months.

27 25. TO DO ALL OF THE FOLLOWING:

28 (a) ~~To~~ Direct and control the laying and construction of railroad
29 tracks, bridges, switches and sidetracks in the streets, alleys and other
30 public places of the town.

31 (b) ~~To~~ Require the same to be so laid and constructed as to
32 interfere as little as possible with the ordinary travel and use of the
33 streets, and other public places.

34 (c) ~~To~~ Authorize the construction of tramways, electric, steam or
35 cable roads and railways in the town, and to regulate the operation
36 thereof, and the fares to be charged thereon and to require the owners
37 thereof to keep in repair the streets wherein the same may be laid, and to
38 construct and keep in repair all bridges, culverts, crossways, ditches and
39 sewers.

40 (d) ~~To~~ Regulate the speed of locomotives.

41 26. To levy taxes as hereinafter mentioned in this article.

42 27. To apply any surplus money in the treasury of the town to the
43 extinguishment of the debt of the town, or to provide a sinking fund for
44 that purpose.

45 28. TO DO ALL OF THE FOLLOWING:

46 (a) ~~To~~ Make, amend or repeal all ordinances necessary or proper for
47 the carrying into effect of the powers vested in the corporation, or any
48 department or officer thereof.

1 (b) ~~To~~ Enforce the observance of such ordinances, and to punish
2 violations thereof by fine or imprisonment, or both, and by confinement at
3 hard labor, in the discretion of the magistrate or court before whom a
4 conviction may be had, but no fine shall be imposed exceeding ~~two thousand~~
5 ~~five hundred dollars~~ \$2,500, nor imprisonment or confinement at hard labor
6 exceeding six months.

7 (c) Unless specifically prohibited by statute, ~~to~~ classify ordinance
8 violations as criminal or civil offenses.

9 29. To adopt ordinances for the government of the corporation, its
10 officers and persons within its corporate limits needful for the good
11 government and order of the municipalities, and to provide the manner of
12 prosecution and define the punishment for the violation of such ordinance.

13 Sec. 2. Section 9-467, Arizona Revised Statutes, is amended to
14 read:

15 9-467. Building permits; issuance; distribution of copies;
16 state preemption; utilities; subsequent owner;
17 limitation; definitions

18 A. Any municipality requiring the issuance of a building permit
19 shall transmit one copy of the permit to the county assessor and one copy
20 to the director of the department of revenue. Permit copies shall provide
21 the permit number, issue date and parcel number. On the issuance of the
22 certificate of occupancy or the certificate of completion or on the
23 expiration or cancellation of the permit, the assessor and the department
24 of revenue shall be notified in writing or in electronic format of the
25 permit number, parcel number, issue date and completion date.

26 B. The regulation of a utility provider's authority to operate and
27 serve customers is a matter of statewide concern. The regulation of
28 building permits as it relates to a building permit applicant's ability to
29 use a utility provider that is capable and authorized to provide utility
30 service is allowed solely in accordance with subsections C and D of this
31 section. A building permit applicant's ability to use a utility provider
32 that is capable and authorized to provide utility service is not subject
33 to further regulation by a municipality.

34 C. A municipality requiring the issuance of a building permit may
35 not deny a permit application based on the utility provider proposed to
36 provide utility service to the project.

37 D. A municipality issuing a building permit shall ensure that all
38 applicable permits and associated fees assessed on a building permit
39 applicant contain requirements and amounts that do not exceed the
40 requirements and amounts for use of other utility providers and do not
41 have the effect of restricting ~~a~~ **THE** permit applicant's ability to use
42 the services of a utility provider that is capable and authorized to
43 provide utility service.

44 E. A municipality may not require an applicant for a building
45 permit to hold a transaction privilege tax license or business license as
46 a condition for issuing the building permit. A ~~city or town~~ **MUNICIPALITY**
47 may require a person that has been issued a building permit and that does

1 not otherwise hold a business license from the municipality to apply for a
2 business license within thirty days after issuing the building permit.

3 F. NOTWITHSTANDING ANY OTHER LAW, A MUNICIPALITY MAY ~~[NOT ISSUE]~~
4 ~~[DENY]~~ A BUILDING PERMIT IF THE APPLICATION FOR A BUILDING PERMIT IS FOR
5 THE CONSTRUCTION OR DEVELOPMENT OF A BUILDING OR STRUCTURE THAT CONTAINS
6 ~~[EXTERNAL]~~ SPEAKERS OR AN ~~[EXTERNAL]~~ AMPLIFYING SYSTEM THAT HAS THE
7 CAPACITY TO EMIT SOUND THAT IS EQUAL TO ~~[SEVENTY]~~ [ONE HUNDRED TWENTY
8 FIVE] DECIBELS OR GREATER ~~[AND THAT EMITS SOUNDS AT SEVENTY DECIBELS OR~~
9 ~~GREATER FIVE TIMES OR MORE EACH DAY].~~

10 ~~F.~~ G. If a person has constructed a building or an addition to a
11 building without obtaining a building permit, a municipality shall not
12 require a subsequent owner to obtain a permit for the construction or
13 addition done by the prior owner before issuing a permit for a building
14 addition except that this section does not prohibit A MUNICIPALITY FROM
15 enforcing an applicable ordinance or code provision that affects the
16 public health or safety.

17 ~~G.~~ H. This section does not prohibit a municipality from
18 recovering reasonable costs associated with reviewing and issuing a
19 building permit.

20 ~~H.~~ I. This section does not affect any authority of a municipality
21 to manage or operate a municipally owned utility.

22 ~~I.~~ J. For the purposes of this section:

23 1. "Municipality" means a city or town organized in accordance with
24 law, including a home rule or charter city.

25 2. "Utility service" means water, wastewater, natural gas,
26 including propane gas, or electric service provided to an end user.

27 Sec. 3. Section 49-141, Arizona Revised Statutes, is amended to
28 read:

29 49-141. Environmental nuisances

30 A. The director may take action under this section to abate
31 environmental nuisances. As used in this section, an environmental
32 nuisance is the creation or maintenance of a condition in the soil, air or
33 water that causes or threatens to cause harm to the public health or the
34 environment and that is not otherwise subject to regulation under this
35 title. Subject to this limitation, the following conditions may
36 constitute environmental nuisances:

37 1. A condition or place in populous areas ~~[which]~~ [THAT]
38 constitutes a breeding place for flies, rodents, mosquitoes and other
39 insects ~~[which]~~ [THAT] are capable of carrying and transmitting
40 disease-causing organisms to any person or persons.

41 2. A place, condition or building ~~[which]~~ [THAT] is controlled or
42 operated by any governmental agency, state or local, and ~~[which]~~ [THAT] is
43 not maintained in a sanitary condition.

44 3. Sewage, human excreta, wastewater, garbage or other organic
45 wastes deposited, stored, discharged or exposed so as to be a potential
46 instrument or medium in the transmission of disease to or between any
47 person or persons.

1 4. A vehicle or container ~~[which]~~ [THAT] is used in the
2 transportation of garbage or human excreta and ~~[which]~~ [THAT] is defective
3 and allows leakage or spillage of contents.

4 5. The maintenance of an overflowing septic tank or cesspool~~[,-]~~
5 the contents of which may be accessible to flies.

6 6. The pollution or contamination of any domestic waters.

7 7. The use of the contents of privies, cesspools, or septic tanks
8 or the use of sewage or sewage plant effluents for fertilizing or
9 irrigation purposes for crops or gardens except by specific approval of
10 the department of health services or the department of environmental
11 quality.

12 8. The storage, collection, transportation, disposal and
13 reclamation of garbage, trash, rubbish, manure and other objectionable
14 wastes other than as provided and authorized by law and rule.

15 9. Water, other than that used by irrigation, industrial or similar
16 systems for nonpotable purposes, ~~[which]~~ [THAT] is sold to the public,
17 distributed to the public or used in production, processing, storing,
18 handling, servicing or transportation of food and drink and ~~[which]~~ [THAT]
19 is unwholesome, poisonous or contains deleterious or foreign substances or
20 filth or disease-causing substances or organisms.

21 10. ~~[A]~~ [AN EXTERNAL] SPEAKER OR [EXTERNAL] AMPLIFYING SYSTEM THAT
22 HAS THE CAPACITY TO EMIT SOUND THAT IS EQUAL TO ~~[SEVENTY]~~ [ONE HUNDRED
23 TWENTY FIVE] DECIBELS OR GREATER.

24 B. The director may adopt rules that prescribe minimum standards
25 for the prevention and abatement of environmental nuisances. In adopting
26 rules pursuant to this subsection, the director shall incorporate the
27 criteria set forth in section 49-282.06, subsection A and shall ensure
28 that the nuisance is abated so that it will not recur.

29 Enroll and engross to conform

30 Amend title to conform

WENDY ROGERS

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